

-

File No.: EXP202102433

RESOLUTION OF THE APPEAL FOR RECONSIDERATION

Examined the appeal for reconsideration filed by Mr. C.C.C. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated 06/16/2022, and based on the following:

FACTS

FIRST: On 08/09/2021, a complaint was filed with the Spanish Agency for Data Protection (hereinafter, AEPD) by Ms. A.A.A. and Mr. B.B.B. regarding Mr. C.C.C.

SECOND: On 06/16/2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202102433. The resolution was notified to the appellant on 07/08/2022, as evidenced in the file.

THIRD: On 08/10/2022, an appeal for reconsideration was registered with the AEPD filed by the appellant against the resolution indicated in the previous point, in which he expresses his disagreement with it.

The following legal grounds apply to the aforementioned facts:

LEGAL GROUNDS

I

Preliminarily, it should be noted that the new document submitted by the appellant has not been classified as an appeal for reconsideration. However, section 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the appeal by the appellant shall not be an obstacle to its processing, provided that its true nature is deduced; therefore, the submitted document will be processed as an appeal for reconsideration.

The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Article 116 of the LPACAP establishes in its letter d) as a cause for inadmissibility of administrative appeals "Having elapsed the period for filing the appeal."

III

According to the provisions of Article 124 of the LPACAP: "The period for filing the appeal for reconsideration shall be one month, if the act is express."

Article 119 of this law adds that: "The resolution of the appeal shall either fully or partially uphold or dismiss the claims made therein or declare its inadmissibility."

Regarding the computation of the indicated period, it must be attended to the provisions of section 4 of Article 30 of the LPACAP, which states: "If the period is set in months or years, these shall be computed from the day following that on which the notification or publication of the act in question takes place, or from the day following that on which the estimation or dismissal by administrative silence occurs.

The period shall conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the computation begins, it shall be understood that the period expires on the last day of the month."

In this case, the resolution of the Director of the Spanish Agency for Data Protection dated 06/16/2022 was notified to the appellant on 07/08/2022, and the appeal for reconsideration was filed on 08/10/2022.

Therefore, it can be concluded that the filing of the appeal for reconsideration on the indicated date exceeds the legally established filing period, and thus the appeal must be declared inadmissible as untimely.

In view of the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the appeal for reconsideration filed by Mr. C.C.C. against the resolution of this Agency, issued on 06/16/2022, in file EXP202102433.

SECOND: TO NOTIFY this resolution to Mr. C.C.C.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/2